

AOC-JV-29.1 Doc. Code: OEXD
Rev. 8-23 OEXG
Page 1 of 2

Commonwealth of Kentucky
Court of Justice www.kycourts.gov



ORDER FOR EXPUNGEMENT OF JUVENILE RECORD UPON PETITION

KRS 610.010, .330; JCRPP 19

[signature/date review zone](#)

Case No. _____

Court [] District [] Family

County _____

Division _____

ORDERS FOR EXPUNGEMENT UPON DISMISSAL OF PETITION OR FINDING/ADJUDICATION OF NOT DELINQUENT SHOULD BE COMPLETED ON THE AOC-JV-29.

IN THE INTEREST OF: _____, A CHILD

DOB	Sex	Race	SSN

FINDINGS OF FACT

The AOC-JV-30, Petition to Vacate and Expunge Juvenile Record, having been filed in this Court setting forth facts which request this Court to vacate the adjudication of the below-named offense(s) and to expunge the records of the person named in the Petition (hereinafter referred to as "the child"), notice having been given, a hearing having been held, and the Court having been fully advised FINDS:

1. Petitioner requests that the record of the following offense(s) in the above-referenced case be expunged:

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

2. ☐ There are no proceedings pending or being instituted against the above-referenced child;

3. ☐ The above-stated offense(s) is/are not a sex crime, as defined in KRS 17.500; and

4. ☐ The above-stated offense(s) would not classify a person as a violent offender under KRS 439.3401.

5. Please check one:

☐ This Court's jurisdiction over the child ended on _____, 2____, which was at least two years prior to the filing of the Petition, and the child was not committed to the Department of Juvenile Justice, the Cabinet for Health and Family Services, or to a public or private agency; or

☐ The child was unconditionally released from commitment to the Department of Juvenile Justice or the Cabinet for Health and Family Services or a public or private agency on _____, 2____, which was at least two years prior to the filing of the Petition; or

☐ The Court's waiver of the two year period is granted due to the extraordinary circumstances of:

6. Other:

[signature/date review zone](#)

THEREFORE, IT IS HEREBY ORDERED:

- 7.
- ☐
- The Petition is
- DENIED**
- . (Doc Code: OEXD)

participant/case info review zone

- 8.
- ☐
- The Petition is
- GRANTED**
- . The Court further
- ORDERS**
- : (Doc Code: OEXG)

- a. All records of adjudication of above-referenced status offenses, public offenses, and mental health records, in the named person's case in the custody of the Court and any such records in the custody of any other agency or official, including law enforcement records, shall be expunged, and this Order shall be proof and authority to the respective agency or official that the respective records must be expunged;
- b. Upon entry of this Order to expunge the above-specified records, the proceedings in the case shall be deemed never to have occurred, all index references shall be deleted, and the person and Court may properly reply that no record exists with respect to such offense upon any inquiry in the matter;
- c. The person whose record is expunged shall not have to disclose the fact of the record or any matter relating thereto on an application for employment, credit, or other type of application;
- d. Copies of this Order shall be sent to each of the following agencies or officials:

and;

- e. Inspection of the records included in this Order may hereafter be permitted by the Court only upon Petition by the person who is the subject of such records, and only to those persons named in such Petition.

_____, 2_____
Date

Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

signature/date review zone

INSTRUCTION TO CLERK: SEND A COPY OF THIS ORDER TO THE AGENCIES OR OFFICIALS LISTED IN SUBSECTION 8. d.

CLERK: REFER TO CLERK'S MANUAL FOR INSTRUCTIONS ON FILING THIS CERTIFICATION.